

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.16380 of 2006

Md. Farid Uddin Howlader
.... Accused-Petitioner

-Versus-
The State

.... Opposite Party
None appears

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

... For the State.

Heard and Judgment on 13.03.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the order dated 18.07.2006 passed by the learned Divisional Special Judge and Sessions Judge, Barishal in Session Case No.18 of 2006 arising out of Babugonj Police Station Case No.3 dated 26.01.2005 pending for trial before the learned Divisional Special Judge

and Sessions Judge, Barishal and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that an Inspector of Post Office namely Kazi Shah Alam lodged an ejahar on 26.01.2005 alleging the petitioner Md. Farid Uddin Howlader while working as the Sub-Post Master of Madobpasha Sub-Post Office during 01.11.1990 to 10.04.2004 created 83 forged money orders and by giving forged signatures received above money orders and thereby misappropriated Taka 1,90,000/-.

On conclusion of investigation police submitted a charge sheet on 22.02.2006 and the learned Session Judge, Barishal took cognizance against the petitioner under Sections 409/420 of the Penal Code and sent the case to the Court of Divisional Special Judge, Barishal for trial.

On 18.07.2006 the learned Divisional Special Judge framed charge against the petitioner under Sections 420/109 of the Penal Code.

Being aggrieved by above order of the learned Divisional Special Judge, Barishal the accused as petitioner moved to this Court and obtained the Rule.

No one appears on behalf of the petitioner when the matter was taken up for hearing although this matter came up in the list for hearing today.

Mr. A.K.M. Alamgir Parvez, learned Advocate for the Anti-Corruption Commission submits that the occurrence of misappropriation of Taka 1,90,000/- which was government money by the petitioner occurred during 01.11.1990 to

10.04.2004. The Anti-Corruption Commission Act, 2004 came into force on 23.02.2004. Section 20 of the Anti-Corruption Act, 2004 provides that the investigation or inquiry of any case involving the offences described in the schedule of the above Act shall be performed exclusively by the Anti-Corruption Commission. Undisputedly the petitioner was a government servant and he was charged under Section 9 of the Penal Code. Above provision of the Penal Code falls exclusively in the schedule of the Anti-Corruption Commission and no other agency was legally authorized to lodge an ejahar for above offence or conduct investigation of the offence. The investigation of the offence by police was a clear violation of Section 20 of the Anti-Corruption Commission Act, 2004.

We have considered the submissions made by the learned Advocate for Anti-Corruption Commission and carefully examined all materials on record.

Undisputedly petitioner Md. Farid Uddin Howlader was a sub-Post Master and the allegation against him was that during 01.11.1990 to 10.04.2004 while working as a Sub-Post Master as at Madobpasha Sub-Post office he misappropriated Taka 1,90,000/- by creation of forged money orders. Above allegation of corruption against a public servant which occurred after promulgation of the Anti-Corruption Act, 2004 falls exclusively in the domin of the Anti-Corruption.

In this case the investigation was conducted by the police not by the Anti-Corruption Commission. As such above investigation has been vitiated by Section 20 of the Anti-

Corruption Act, 2004. The learned Session Judge, Barishal should have instead of taking cognizance against the petitioner under Section 409 of the Penal Code asked the Anti-Corruption Commission to investigate the offence afresh and submit a report in accordance with the provisions of Anti-Corruption Commission Act, 2004. But the learned Session Judge, Barishal most illegally took cognizance against the petitioner on the basis of a charge sheet submitted by police. Similarly the learned Divisional Special Judge, Barishal committed an illegality in framing charge against the petitioner under Sections 409 and 420 of the Penal Code although above case was not investigated by Anti-Corruption Commission but police.

In above view of the materials on record we find substance in this application and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

The impugned order dated 18.07.2006 passed by the learned Divisional Special Judge and Session Judge, Barishal in Session Case No.18 of 2006 arising out of Babugonj Police Station Case No.3 dated 26.01.2005 is hereby quashed.

Communicate this judgment and order to the Court concerned.

Md. Ali Reza, J:

I agree.